

Case	Title / Nature of Case
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2:00 PM LINE 1

20-CIV-05468	WEBSTER LINCOLN VS. ANTONIO LOPEZ, ET AL
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WEBSTER LINCOLN ANTONIO LOPEZ	TERANCE D. ORME ANN M. RAVEL
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Plaintiff's Motion for Sanctions & Attorneys' Fees for Bad-Faith Conduct Regarding the Filing of a False Proof of Service Per C.C.P. 128.5 and 128.7

TENTATIVE RULING:

For the reasons stated below, Contestant Webster Lincoln's Motion for Sanctions, Etc. is **DENIED**.

Defendant Antonio Lopez's Request for Judicial Notice is **GRANTED**.

Defendant's Objections Nos. 1–3 to Contestant's Reply are **SUSTAINED**.

BACKGROUND

In November 2020, Defendant Antonio Lopez ("Defendant") was elected to the East Palo Alto City Council, winning his seat against Contestant Webster Lincoln ("Contestant") by 69 votes. Contestant sought to annul the election, alleging that Defendant violated the Elections Code by campaigning within 100 feet of a ballot drop box on Election Day, allowing a taco truck to block an accessible parking space, and offering free tacos. The Court ruled in favor of Defendants. (Judgment, Apr. 21, 2021.) The judgment was affirmed by the Court of Appeal (Remittitur, July 7, 2022), and the Court subsequently awarded attorney's fees to Defendant. (Order Amending July 28, 2022 Order, filed Dec. 9, 2022.)

Defendant filed an Application and Order for Appearance and Examination ("AOEx") of Contestant as a judgment debtor on May 26, 2023. The examination was set for June 29, 2023. Defendant again filed an AOEx on May 19, 2025, which was initially set for hearing on July 3, 2025, and thereafter continued to July 17, 2025.

On July 7, 2025, Contestant filed a Motion to Quash Application and Order for Appearance and Examination ("Motion to Quash"). On July 11, 2025, Contestant filed an ex parte application to stay the debtor's examination, which the Court denied. Contestant thereafter filed a Notice of Special Appearance and Formal Protest on July 15, 2025, objecting to the examination on due process grounds.

At the July 17, 2025 hearing on the AOEx, the Court determined that the validity of the disputed service could not properly be resolved in that proceeding and, to preserve Contestant's due process rights, ordered the examination off calendar. (Minute Order, July 17, 2025.)

Defendant filed another AOEx on August 28, 2025. The examination ultimately proceeded on December 18, 2025. Contestant again sought ex parte relief to stay the examination, which the Court denied, noting that Contestant was required to proceed by noticed motion. (Order, Oct. 16, 2025.) Contestant's conduct during the December 18, 2025 examination resulted in the Commissioner suspending the examination until March 5, 2026, and issuing an order to show cause regarding Contestant's objections. At the March 5, 2026 hearing, the Court imposed sanctions against Contestant and subsequently determined that Contestant's conduct at the December 18, 2025 examination constituted contempt. (Order After Hearing, filed Mar. 30, 2026.)

Meanwhile, on November 6, 2025, the Court granted Contestant's Motion to Quash. In doing so, the Court expressly found that the proof of service filed in connection with the AOEx was false. Specifically, the Court found that the proof of service, which represented that Contestant had been personally served in the courtroom at 1:23 p.m. on May 28, 2025, was "demonstrably false."

Contestant also sought sanctions in connection with the Motion to Quash. The Court denied that request because sanctions under Code of Civil Procedure section 128.5 were required to be sought by a separate motion and Contestant had improperly incorporated the sanctions request into the Motion to Quash.

Contestant now again seeks sanctions against Defendant and his counsel based upon the filing of the false proof of service. Contestant seeks monetary sanctions in the amount of **\$27,750** and further asks the Court to make findings concerning the falsity of the proof of service and the alleged bad faith of Defendant and his counsel. The Motion additionally requests that the Court exercise its asserted inherent authority to offset, reduce, or vacate the judgment entered against Contestant.

SANCTIONS

Contestant seeks sanctions under Code of Civil Procedure sections 128.5 and 128.7.

Code of Civil Procedure section 128.7, subdivision (c)(1), provides in relevant part that "[a] motion for sanctions under this section shall be made separately from other motions or requests" and must describe the specific conduct alleged to violate subdivision (b). (Code Civ. Proc., § 128.7, subd. (c)(1).)

Section 128.5 contains a materially identical procedural requirement. It provides that "[a] motion for sanctions under this section shall be made separately from other motions or requests" and must describe the specific alleged action or tactic warranting sanctions. (Code Civ. Proc., § 128.5, subd. (f)(1)(A).)

The present Motion does not comply with the separate-motion requirement of either statute. In addition to requesting monetary sanctions under sections 128.5 and 128.7, Contestant asks the Court to exercise its asserted inherent authority to offset, reduce, or vacate the judgment. Thus, the statutory sanctions requests were not made separately from Contestant's other requests for relief.

The defect is particularly significant because the Court previously denied Contestant's request for sanctions arising from the same false proof of service on substantially the same procedural ground. In its November 6, 2025 ruling, the Court advised Contestant that a request for sanctions under section 128.5 was required to be brought separately. The present Motion again combines the statutory sanctions request with additional requests for substantive relief.

Contestant attempts in Reply to withdraw or otherwise disavow the additional requests for relief. That argument does not cure the defect in the Motion as filed. The statutory requirement is that the **motion for sanctions itself** be made separately from other motions or requests. (Code Civ. Proc., §§ 128.5, subd. (f)(1)(A), 128.7, subd. (c)(1).) A party may not cure a failure to comply with that requirement by materially restructuring the motion for the first time in reply.

The Court therefore need not determine whether Contestant otherwise satisfied any applicable safe-harbor requirements under sections 128.5 or 128.7, or whether the conduct previously identified by the Court would substantively warrant sanctions if presented through a procedurally proper motion.

The Court emphasizes that its ruling **DOES NOT** disturb its prior finding that the May 28, 2025 proof of service was demonstrably false. The present Motion is denied because the statutory procedures governing the requested sanctions have not been satisfied.

Accordingly, Contestant's Motion for Sanctions is **DENIED**.

REQUEST FOR JUDICIAL NOTICE

Defendant requests judicial notice of a blank Judicial Council form.

California Rules of Court, rule 3.1113(l), governs requests for judicial notice made in connection with motions, and rule 3.1306(c) requires the requesting party to provide the Court and opposing parties with copies of the material to be noticed where appropriate.

Evidence Code section 452, subdivision (c), permits judicial notice of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." Judicial Council forms are proper subjects of judicial notice as official acts. (See *Alan v. American Honda Motor Co., Inc.* (2007) 40 Cal.4th 894, 904, fn. 5.)

The Request for Judicial Notice is therefore **GRANTED**.

DEFENDANT'S OBJECTIONS TO THE REPLY

Defendant's Objections Nos. 1–3 to Contestant's Reply are **SUSTAINED**. In particular, Contestant may not use his Reply to advance a materially new procedural theory or to cure the failure to comply with the statutory separate-motion requirement by withdrawing additional requests for relief that were included in the Motion as filed.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide notice of the ruling to all parties who have appeared in the action as required by law. The parties are directed to revised Local Rule 3.403(b)(iv), effective January 1, 2024, concerning the wording of proposed orders.

2:00 PM LINE 2

24-CIV-06967

CITY OF FOSTER CITY, ET AL VS. ELIZABETH KARNAZES, ET AL

**CITY OF FOSTER CITY
ELIZABETH KARNAZES**

**BENJAMIN L. STOCK
PRO SE**

Further Proceedings – Court’s Ruling to Defendant John Hartford’s Demurrer

TENTATIVE RULING:

Parties to appear. All parties may appear remotely.